

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA

Colonial Manor MHC Holdings, LLC
Plaintiff,

vs.

Case No.: 2022-CC-4105

Iris Williams,
Jeanie Grace Dicicco,
Howard Vincent Blackwell,
Defendants.

FILED FOR RECORD
2023 MAR 22 AM 11:11
CLERK OF COURT
MANATEE COUNTY, FLORIDA

**ORDER GRANTING THE DEFENDANT IRIS WILLIAMS' MOTION FOR AN
AWARD OF ATTORNEYS' FEES AND COSTS**

This cause came before the court on Tuesday July 25, 2023 via a Zoom hearing on the Defendant Iris Williams's motion for an award of attorneys' fees and costs. The Parties' attorneys presented substantial legal argument and case law concerning the issues. Upon review of the record and the law, the court finds as follows:

1. The Plaintiff had filed a complaint which in Count I was seeking the possession of a mobile home lot, seeking damages in Count II, and enforcing a landlord's lien in Count III. The entire complaint was premised upon an action for removal of a mobile home park lot tenant pursuant to Florida Statute §723.061(1)(c).
2. The complaint alleged that Defendant Iris Williams was the owner of the mobile home on said premises.
3. The complaint had alleged causes of action premised upon the Parties' mobile home lot tenancy pursuant to Chapter 723 of the Florida Statutes.

4. The Plaintiff in paragraph 49 of the complaint claimed an entitlement to an award of attorneys' fees and costs pursuant to Florida Statute §723.068.
5. Florida Statute §723.068 states that in any proceeding between private parties to enforce provisions of this chapter, the prevailing party is entitled to a reasonable attorney's fee.
6. The Defendant Iris Williams was served with a 5 day eviction summons.
7. The Plaintiff's complaint clearly alleged a proceeding between private parties to enforce provisions of Chapter 723.
8. Florida Statute §723.068 does not require a judgment to be rendered to determine the prevailing party. This case does not involve a statute that conditions fees upon the entry of a judgment or decree. The statute here at issue provides for an award of fees to the prevailing party.
9. The court finds that the case of Alhambra Homeowners Association, Inc. v. Asad, 943 So.2d 316 (Fla 4th DCA 2006) is controlling.
10. The instant case was dismissed by the Plaintiff as to this Defendant Iris Williams.
11. The court order authorizing the amended complaint and the dismissing this Defendant Iris Williams was rendered on July 28, 2022.
12. This Defendant's motion for an award of attorneys' fees and costs was filed on August 23, 2023, and was filed within thirty [30] days of the order of dismissal rendered on July 28, 2022.
13. The Defendant Iris Williams was the owner of the mobile home, and the case was one that fell under the parameters of a Chapter 723 proceeding.

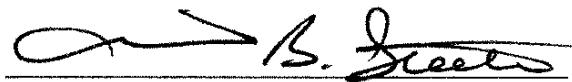
14. The Defendant Iris Williams was the prevailing party as to the dismissal of the case as to her.

15. The court finds in favor of the Defendant Iris Williams as to the issue of entitlement to an award of Attorneys' fees and costs.

16. The Defendant Iris Williams's motion for an award of attorneys' fees and costs is GRANTED.

17. The Defendant Iris Williams is hereby awarded her reasonable attorneys' fees and costs as she was required to employ legal counsel to contest and litigate this matter and to pay him a reasonable fee. The court reserves jurisdiction on the amounts.

Done and Ordered in Manatee County, Florida on ~~August~~ 15, 2023.


County Judge

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